



Land Restoration Fund

Carbon Farming Advice Rebate Guidelines

1. About the program

In November 2017, the Government announced a \$500 million Land Restoration Fund to directly support Queensland based land sector carbon projects and create new jobs and opportunities in this growing industry.

The Land Restoration Fund (the Fund) is an innovative program designed to assist eligible applicants transition their land management practices and adjust to changing environments and to improve the sustainability of their land.

The Fund builds on the Australian Government's regulatory framework for generating Australian Carbon Credit Units (ACCUs). ACCUs are tradeable financial products regulated by the Commonwealth Clean Energy Regulator. The Fund has as its primary objective to facilitate a pipeline of projects that generate ACCUs with environmental, social and economic co-benefits.

The objective of the Carbon Farming Advice Rebate program is to assist eligible applicants with the cost of accessing *eligible advice* about undertaking a *carbon farming project* on their land through the Land Restoration Fund.

An initial amount of up to \$1 million has been made available to provide rebates under the program.

2. Available funding

2.1 The assistance available under this program is a rebate up to a maximum amount of \$10,000 towards the cost of *eligible advice*.

2.2 Only one rebate may be received by an applicant under the program.

2.3 The amount of a rebate cannot exceed the cost of *eligible advice* received.

3. Eligibility criteria

3.1 Entities eligible to receive a rebate include:

- a) *primary producers*;
- b) *small to medium sized businesses*;
- c) land holders with a *private conservation area*;
- d) *non-profit organisations*
- e) Aboriginal and Torres Strait Islander corporations registered under the *Corporations (Aboriginal and Torres Strait Islander) Act 2006* (Cwlth); or
- f) local governments under the *Local Government Act 2009* (Qld).

3.2 To be eligible for a rebate you must also:

- a) be a *land holder* in Queensland; or

- b) be an *eligible entity* seeking *eligible advice* on behalf of a *land holder* in Queensland with the written consent of the *land holder*;
- c) have not received and paid for eligible advice before applying and receiving a notice of eligibility from QRIDA;
- d) ensure the *eligible advice* is provided by an *approved adviser* who:
 - i. is not employed by an entity owned or partially owned by you; and
 - ii. produces a report covering areas within their professional expertise related to the topics outlined in Appendix 1.

Note: A list of approved advisers is on QRIDA's website at: www.qrida.qld.gov.au.

4. Eligible costs

4.1 Eligible costs for a rebate under the program are:

- a) costs for provision of *eligible advice* by *approved advisers* at a cost of up to \$200 per hour excluding GST; and
- b) reasonable travel and accommodation expenses associated with providing *eligible advice*.

4.2 A rebate may cover more than one invoice from one adviser but must be the subject of a single claim.

4.3 **The level of advice provided should be proportionate with the advice required by an applicant.** (For example, if it is apparent an applicant would not be eligible to complete a *carbon farming project* the advice should be limited to this extent).

5. How to apply

5.1 To apply for a rebate, you must complete the on-line application form available on QRIDA's website at: www.qrida.qld.gov.au

5.2 The program will close to applications on 30 June 2020 or when available funds have been fully used.

5.3 QRIDA will assess applications in order of receipt.

5.4 Following receipt of a notice of eligibility from QRIDA, you may proceed to access *eligible advice*.

5.5 To receive a rebate payment to your nominated bank account you should submit a claim form, available from QRIDA's website, along with:

- (a) a copy of the paid invoice from the *approved adviser*;
- (b) a copy of the written advice received; and
- (c) a declaration you are satisfied with the advice received. (This declaration is included in the claim form).

6. More information

For more information on the Carbon Farming Advice Rebate Program, contact QRIDA on **Freecall 1800 623 946** or email carbonfundrebate@qrida.qld.gov.au.

7. Definitions

Approved adviser means a person who is listed on QRIDA's website as an approved adviser.

Carbon farming project means projects following methods accredited by the Commonwealth Clean Energy Regulator with the prospect of generating Australian Carbon Credit Units.

Eligible advice means written advice completed by an *approved adviser* covering areas within their professional expertise related to the topics set out in Appendix 1.

Land holder means the following—

- a) if the land is freehold land—the registered owner of the land;
- b) if the land is the subject of a lease registered under the *Land Title Act 1994* (Qld) — the lessee of the land;
- c) if the land is the subject of a lease registered under the *Land Act 1994* (Qld) — the lessee of the land;
- d) if the land is a reserve—the trustee of the reserve;
- e) if a person has occupation rights in relation to the land under a licence or permit—the licensee or permittee.

Non-profit organisation means a charity or other not-for-profit entity that is incorporated under a law of the Commonwealth or a state and either:

- a) registered under the *Australian Charities and Not-for-profits Commission Act 2012* (Cwth) or the *Collections Act 1966*, or
- b) registered or otherwise authorised to raise funds under a law of another State.

Primary producer means a person who meets the Australian Taxation Office definition of a primary producer and is not operated by a public company.

Private conservation area means land subject to a nature refuge, special wildlife reserve, land for wildlife listing, or co-ordinated conservation area.

Small to medium sized business means a sole trader, partnership, trust or private company which holds an ABN, is registered for GST, employs fewer than 200 full-time equivalent employees and is not operated by a public company.

APPENDIX 1: Advice requirements

Eligible advice from an *approved adviser* must be related to at least one of the following:

1. Details about carbon farming including the regulatory framework and approved methods.
2. Details about the Land Restoration Fund including its investment approach and co-benefits framework.
3. Details related to the specific location of the land holder including:
 - a. land tenure restrictions and requirements including eligible interest holder consent;
 - b. likely establishment and ongoing management requirements;
 - c. potential methods that might apply and potential co-benefits;
 - d. Indicative cost benefit analysis; or
 - e. consideration of climate change impact on the viability of the project.
4. Details related to:
 - a. legal issues and considerations; or
 - b. financial impacts and considerations.

that could influence the decision to participate in an application for a Land Restoration Project.